

CV-25-004732 SECREASE, TAKETHIA vs WENDYS OF THE PACIFIC INC – Defendant Wendy's of the Pacific Inc.'s Motion for Summary Judgment, or in the Alternative, Summary Adjudication as to Plaintiff, Takethia Secrease's Complaint – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Preliminarily, the Court notes that Defendant's Separate Statement identifies only one issue for determination; therefore, it appears that grounds for summary adjudication have not been asserted herein. With regard to Defendant's motion for summary judgment, the Court finds that Defendant, as the moving party, met the initial burden of establishing prima facie entitlement to judgment based on the submitted evidence. The burden then shifts to Plaintiff to produce admissible evidence demonstrating the existence of a triable issue of material fact. (Code Civ. Proc. §437c(p)(2).) The Court finds that Plaintiff has met her burden in this regard and has demonstrated the existence of material factual disputes, at a minimum, with regard to UMF 11, 24, 25, 26, and 27 and Plaintiff's additional facts. In addition, the Court declines to disregard the challenged factual assertions contained in Plaintiff's supporting declaration in accordance with Defendant's argument that these exceed the scope of the pleadings herein on the grounds. Pleadings are liberally construed (Code Civ. Proc. § 452), and the challenged factual assertions herein merely elaborate on Plaintiff's claim involving the same fundamental instrumentality identified in the pleadings, i.e., the accumulation of liquid on the floor of the restaurant . (See, e.g. Blair v. Superior Court (1990) 218 Cal.App.3d 221, 226.) Lastly, the Court notes that Defendant's objections to Plaintiff's evidence are not submitted in the format required by Cal. Rules of Ct., rule 3.1354; therefore, the Court declines to rule on them. (Hodjat v. State Farm Mutual Automobile Co. (2012) 211 Cal.App.4th 1.)

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In addition, the Court declines to disregard the challenged factual assertions contained in Plaintiff's supporting declaration in accordance with Defendant's argument that these exceed the scope of the pleadings herein on the grounds. Pleadings are liberally construed (Code Civ. Proc. § 452), and the challenged factual assertions herein merely elaborate on Plaintiff's claim involving the same fundamental instrumentality identified in the pleadings, i.e., the accumulation of liquid on the floor of the restaurant . (See, e.g. Blair v. Superior Court (1990) 218 Cal.App.3d 221, 226.)

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